

HOUSE BILL 452

By Glynn

AN ACT to amend Tennessee Code Annotated, Title 29
and Title 66, relative to eviction actions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 29-18-117, is amended by deleting the section and substituting:

The officer serving the warrant shall notify the defendant of the time and place of trial. The trial must be held not less than six (6) days from the date of service. For trials for unlawful detainer based solely on a complaint for nonpayment of rent, the trial must be held not more than fourteen (14) days from the date the plaintiff filed the unlawful detainer action.

SECTION 2. Tennessee Code Annotated, Title 29, Chapter 18, is amended by adding the following as a new section:

In a trial or hearing for unlawful detainer based solely on nonpayment of rent, the scope of the hearing must be limited to facts and issues related to nonpayment of rent, including the terms of the lease agreement and payment history of the defendant.

SECTION 3. Tennessee Code Annotated, Section 29-18-126, is amended by deleting the section and substituting:

(a) Except as provided in subsection (b), an execution or writ of possession must not be issued against the defendant upon any judgment issued under this chapter until after the lapse of ten (10) days from the rendition of the judgment.

(b)

(1) If a court renders a judgment in favor of the plaintiff for an unlawful detainer action based on nonpayment of rent, then the writ of possession must:

(A) Be issued against the defendant within twenty-four (24) hours from rendition of the judgment; and

(B) Require the defendant to vacate the property and return possession of it to the plaintiff within seven (7) days from the defendant's receipt of the writ.

(2) If the defendant fails to vacate the property and return possession of the property to the plaintiff within the seven-day timeframe described under subdivision (b)(1)(B), then the plaintiff may request from the sheriff of the county in which the property is located the immediate removal of the defendant.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.